

speculation and conjecture that the subject defects were present at the time of the alleged incident. These were uncovered during an inspection almost three years post-incident, and after the subject vehicle had traveled an additional 45,693 miles. (*Stokes v. Forty Niners Stadium Management Co., LLC* (2024) 107 Cal.App.5th 1199, 1214 [The opposing party may rely upon inferences, but “those inferences must be reasonably deducible from the evidence, and not such as are derived from speculation, conjecture, imagination, or guesswork. [Citation.]”])

Again, Plaintiff does not dispute that the Cruise Defendants had no role in either the design or manufacture of the subject vehicle. (UMF Nos. 8, 9.) Further, Plaintiff offers no actual evidence that the Cruise Defendants removed any heat insulation or modified the vehicle in any way. (UMF Nos. 11, 12.) Rather, the Opposition focuses on whether Mr. Smalley meant “modification” or if that clear, unambiguous term may have had another meaning. (UMF No. 12.) However, this does not constitute a dispute of fact. (*Champlin/GEI Wind Holdings, LLC v. Avery* (2023) 92 Cal.App.5th 215, 226-227.) Instead, it is tantamount to Plaintiff arguing the proffered fact without any competing evidence.

It is also undisputed that the Cruise Defendants did not request any modifications be performed on the subject RV prior to the incident. (UMF No. 13.) Plaintiff fails to raise a triable issue of fact on this issue.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2306477	BERNIGER VS BORRAYO	MOTION TO COMPEL THE DEPOSITION OF DEFENDANT JUAN MUNOZ, JR. AND REQUEST FOR SANCTIONS

Tentative Ruling: Denied without prejudice to Plaintiff bringing a motion to reopen discovery.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2402061	PEREZ VS KIA AMERICA, INC.	MOTION FOR ATTORNEYS' FEES

Tentative Ruling: Denied as MOOT.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2600620	WELLS FARGO BANK, NATIONAL ASSOCIATION VS LOS TIERREROS TRUCKING, INC.	DEMURRER TO ANSWER

Tentative Ruling: No tentative ruling; the Court requests appearances, either in person or telephonically.